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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stazione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, Member, and Mr. Fabio
Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing
"Code regarding the protection of personal data,
containing provisions for the adaptation
of the national legal system to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data and repealing
Directive 95/46/EC (hereinafter "Code");

HAVING REGARD TO Regulation No. 1/2019 concerning
internal procedures with external relevance,
aimed at carrying out the tasks and
exercising the powers assigned to the Guarantor for the
protection of personal data, approved by
Resolution of the Guarantor No. 98 of 4/4/2019,
published in G.U. No. 106 of 8/5/2019 and in
www.gpdp.it, doc. web n. 9107633 (hereinafter
"Guarantor Regulation No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary
General pursuant to Article 15 of the Guarantor Regulation No. 1/2000 on the
organization and functioning of the office of the Guarantor for the
protection of personal data, in www.gpdp.it, doc.
web n. 1098801;

REPORTING Dr. Agostino Ghiglia;

WHEREAS

1. The investigative activity.

In the month of XX, a complaint was received by this Authority regarding the
production by the Azienda USL Toscana Sud Est (hereinafter AUSL) of
advertising messages depicting a healthcare worker seated at a workstation, in which,
according to the documentation on file, were visible
"the name, surname, date of birth, place of birth,

residence, health booklet number, emergency room record, date and time of admission, date of discharge, severity of discharge, prognosis, treatment, and prescribed medications" of the complainant.

On XX, the AUSL submitted a notification of breach pursuant to Article 33 of the Regulation regarding the facts subject to the complaint, in which it highlighted that it had communicated the aforementioned breach to the interested party pursuant to Article 34 of the Regulation.

On XX, this Office requested information from the aforementioned AUSL also to ascertain the technical and organizational measures adopted or intended to be adopted to prevent incidents like the one reported from recurring.

In a note dated XX, the AUSL responded to the aforementioned request for information, stating, in particular, that:

- "in the billboard in question depicting an emergency room care setting, visibility is limited to the name and surname of the interested party, resulting in a generic correlation between the subject and an emergency service (which can be qualified as a health-related data in light of the extensive notion provided by the Regulation) but certainly characterized by a lack of specificity of the informational content, as no further and/or specific health-related data concerning the interested party is visible";
 - "the positioning of the billboard with the characteristics mentioned above at the triage of the Emergency Room is attributable to an internal accidental action, a mere oversight in a context of exceptional circumstances given the ongoing state of health emergency (with the consequent burden of organizational and human stress) and in the wake of the planning and resumption of ordinary activities in anticipation of the cessation of the state of emergency";
 - "On XX of the previous year, a registered letter was received from the interested party, through the lawyer (...), containing a note titled 'Formal notice of violation of personal data pursuant to Article 33 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data'" in which "a request for compensation for damages, both material and non-material, was made to this Company, in relation to the presence of the billboard at the Emergency Room of Arezzo Hospital" (currently under examination), warning the Company "to immediately delete the data";
 - regarding the deletion request, the AUSL informed the interested party that it "would avail itself pursuant to Article 12, paragraph 3 of the GDPR, of the possibility to extend the deadline for providing feedback on the actions taken regarding the request made" also considering the need to involve the "competent structures concerning the entire territorial scope of the Company"; from which feedback it emerged that: o "in the territorial offices related to the District Zones of the Company and in the offices/locations of the Presidi
- **Hospital Staff and Related Facilities of the Company**

There are no other copies of the advertising poster located at the Emergency Room of the San Donato Hospital in Arezzo; or "on the Company's Facebook page, on the website, and on the company intranet, there are no images of the poster with the described characteristics"; or "the copy of the poster located at the Emergency Room of the San Donato Hospital in Arezzo has been removed and placed under custody in a locked room with no access allowed except by specifically authorized personnel, as it is an evidentiary element in the ongoing compensation litigation with the Company";

- On "XX of last month, formal feedback was provided to the interested party regarding the outcomes as represented above of the actions taken by the Company following the request received";

- "In August of the current year, the Data Protection Officer of the Company, who jointly signs this feedback, was notified of their status as a suspect in the context of criminal proceedings No. (...) following a complaint filed by the interested party through attorney Elisa Fornaciari, for the offense under Article 167 of Legislative Decree 196/2003 concerning the presence of the poster at the Emergency Room in Arezzo";

- "Regarding organizational and procedural measures, including general ones, and staff awareness to prevent similar incidents in the future, it is highlighted that:

- o The Company systematically conducts training for newly hired employees corresponding to new permanent entries, scheduled every first and sixteenth of the month; among the general topics covered, "General Regulation on Data Protection-RGPD and Company Model Data Protection" with training material prepared by the Data Protection Officer";

- o "A company procedure is being prepared that requires the directors of the facilities intending to produce any material (signage, brochures, videos, etc.) related to communication, information, education/promotion of health initiatives, to coordinate with the competent corporate structure in the field of Communication also for the purpose of obtaining prior evaluation from the Company's Data Protection Officer. This procedure will supplement the provisions of the Circular from the General Director sent by email to all Company operators on XX regarding photo and video shoots in the corporate environment and their dissemination via social networks, directives to operators" (..) and the provisions of the Company Regulation on the use of social media Social Media Policy as per resolution No. XX of XX".

In relation to what emerged from the documentation in the records, the Office notified the aforementioned AUSL, pursuant to Article 166, paragraph 5, of the Code, of the initiation of proceedings for the adoption of measures referred to in Article 58, paragraph 2, of the Regulation, inviting the aforementioned holder to submit defensive writings or documents or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code; as well as Article 18, paragraph 1, of Law No. 689 of 24/11/1981) (note of XX, prot. No. XX whose deadlines were extended by note of XX prot. No. XX).

In this act, the Office noted that the AUSL had disseminated health data of the complainant as the aforementioned advertising poster displayed the personal data of the complainant associated with the circumstance that an emergency healthcare service had been provided, in violation of Article 2 septies, paragraph 8, of the Code and the basic principles of processing referred to in Articles 5, 25, and 9 of the Regulation.

With the same note, the Office requested the aforementioned AUSL to acquire a photographic image of the aforementioned poster, in order to ascertain whether other information related to the service provided and the health status of the complainant was also visible as claimed by the complainant ("health booklet number, emergency room record, date and time of entry, date of exit, severity of discharge, prognosis, treatment, and prescribed medications).

With notes dated XX and XX, the AUSL transmitted three images of the aforementioned poster (1 image of the entire poster and 2 detail images, acquired in the records) and submitted its defensive memoranda, waiving the right to be heard in a hearing.

In the note dated XX, the AUSL represented, in particular, that:

- Regarding the criminal proceedings initiated against the data protection officer of the AUSL mentioned above, "the Judge for preliminary investigations adopted on XX an order for the dismissal of the proceedings" in relation to "the request for dismissal by the Public Prosecutor" and the related opposition from the complainant's lawyer. In this order, it is stated that "no other sensitive data of the complainant can be identified in the poster, and even their name is only visible after significant magnification";
 - The period of public exposure of the aforementioned advertising poster is "not precisely determinable but not exceeding a few weeks," as also confirmed by the report from the Director of the UOC Emergency Medicine and Emergency Room of the San Donato Hospital in the records;
 - The aforementioned poster "was not placed in a waiting room but was affixed in the main corridor of patient entry to the Emergency Room, at the time of the events used only by patients entering as Covid negative and an environment where patients or other users typically did not stop."
- **At the time of the events, there was also a "specific Company procedure (Annex F.1) in force that prohibited the access of companions or visitors to hospital facilities, including the Emergency Room, in order to limit the number of people present within them due to the need to contain the potential Covid contagion";**
- **the positioning of the sign at the Emergency Room "is attributable to an internal accidental action, a mere oversight in a context of exceptional circumstances given the ongoing state of health emergency for two years (with the consequent burden of organizational and human stress) and in close proximity to the planning and resumption of ordinary activities in anticipation of the cessation of the state of emergency on March 31, 2022";**
 - ***"The advertising sign was immediately removed from the entrance corridor of the Emergency Room and placed under custody in a locked room with no access allowed except by specifically authorized personnel." "The specimen has been maintained and is still under custody in the aforementioned manner as evidence in the ongoing compensation dispute with the Company";**
 - ***"From the formal feedback received from the structures, and on record, it emerged that in the territorial facilities related to the District Zones of the Company and in the premises/locations of the Hospital Facilities and their respective Establishments of the Company, no other specimens of the advertising sign located at the Emergency Room of the San Donato Hospital in Arezzo were present";**
 - ***"It emerged that on the Company's Facebook page, on the website, and on the company intranet, there were no images of the sign with the described characteristics";**
 - ***"Pursuant to Article 17, paragraph 2, GDPR, the Company has notified the following subjects of the receipt of the lawyer's note (...) containing a warning for the deletion of the data of his client reported on a company sign posted at the Hospital in Arezzo as well as on any further supports, of any nature, bearing the aforementioned image: Studio (XX), Tipografia (XX)";**
 - ***"During 2022, all Directors of Complex Operational Units, Simple Departmental Units, and Functional Units, as well as the Data Protection Representatives of the Macrostructure were enrolled in mandatory individual training for the course 'Data Protection in Healthcare,' lasting 7 hours," and the Annual Training Plan for 2023 has provided for the repetition of the aforementioned course;**
 - ***"At XX, the Training Course 'Data Processing - with particular reference to images - in the Health Company' was held, attended by 192 operators of various profiles (technical, administrative, healthcare) and another edition is planned for 2023";**
 - ***"A company procedure has been prepared" (on record) "that governs the provision of a centralized facility at the company level regarding the creation of materials using images on any support (signage, brochures, videos, photos, posts, etc.) aimed at publication/dissemination within the institutional initiatives of the Company for information, communication, education/promotion of health. This procedure recalls and integrates the provisions of the Circular from the General Director sent by email to all operators of the Company on XX 'Photo and video recordings in the company environment and

their dissemination via social networks, directives to operators" (on record) "and the provisions of the Company Regulation on the use of social media - Social Media Policy as per resolution no. XX of XX".**

- ***"With Resolution of the General Director no. XX of XX, the Code of Conduct of the USL Toscana sud est has been updated" in which "specific provisions regarding the protection of personal data and the use of social media are reported."***

****2. Outcome of the investigative activity.****

Having taken note of what was represented by AUSL Toscana Sud Est in the documentation on record and in the defense memos, it is observed that:

- **pursuant to the Regulation, "health-related data" are considered personal data relating to the physical or mental health of a natural person, including the provision of health care services, which reveal information regarding their health status (Article 4, paragraph 1, no. 15, of the Regulation). Recital no. 35 of the Regulation further specifies that health-related data "includes information about the natural person collected during their registration to receive health care services";**

- **pursuant to the Regulation, personal data must be "processed lawfully, fairly, and transparently concerning the data subject ('lawfulness, fairness, and transparency') and must be "adequate, relevant, and limited to what is necessary for the purposes for which they are processed ('data minimization')" (Article 5, paragraph 1, letters a) and c) of the Regulation);**

- **data must also be processed "in a manner that ensures adequate security (...), including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage (principle of 'integrity and confidentiality')" (Article 5, paragraph 1, letter f), of the Regulation);**

- **the data controller is required to implement "from the design stage," that is, both at the time of determining the means of processing and at the time of the processing itself, "appropriate technical and organizational measures, [...] aimed at effectively implementing the principles of data protection, such as the**

****Minimization, and to integrate into the processing the necessary guarantees in order to meet the requirements of this regulation and protect the rights of the data subjects**** (privacy by design), ensuring that "only the personal data necessary for each specific purpose of processing are processed, by default" (privacy by default) (art. 25, paras. 1 and 2, of the Regulation);

The regulations concerning the protection of personal data provide that information regarding health status cannot be disseminated and can only be communicated to a party other than the data subject based on an appropriate legal basis or at the request of the data subject itself, following a written delegation from the latter (arts. 2 septies, para. 8 and art. 166, para. 2, of the Code and art. 9 of the Regulation);

Since 2014, the Authority, in accordance with art. 22, para. 8 then in force, of the Code, has stated that "the publication of any information from which the state of illness or the existence of pathologies of the data subjects can be inferred is prohibited, including any reference to conditions of disability, physical and/or mental handicap. For this purpose, from the drafting phase of the acts and documents subject to publication, in compliance with the principle of adequate motivation, personal data that is 'excessive', 'irrelevant', 'not indispensable' (and, even less, 'prohibited') should not be included. Otherwise, it is necessary to ensure the relevant obscuring" (cf. Guidelines on the processing of personal data, also contained in acts and administrative documents, carried out for the purposes of publicity and transparency on the web by public entities and other obligated entities, part II, para. 1, of 15.5.2014, doc. web no. 3488002);

From the documentation produced in the records and in light of what is indicated in the order for the dismissal of the criminal proceedings initiated regarding the facts of the appeal adopted by the Judge for preliminary investigations of Arezzo on XX, it is noted that in the aforementioned advertising billboard, the name and surname of the complainant were recognizable as present in the screen of the emergency operator captured in the billboard;

The presence on the aforementioned billboard of the complainant's personal data associated with the healthcare service provided to him in an emergency constitutes a dissemination of data regarding his health since, according to what is stated in the records, the aforementioned billboard was located in the main corridor of patient entry to the Emergency Room, that is, in an area accessible to anyone;

From the documentation in the records, it is therefore established that AUSL Toscana Sud Est has disseminated information regarding the health status of a data subject since in the aforementioned advertising billboard, located in a place accessible to anyone, the name and surname of the complainant were recognizable on an emergency card displayed on the screen of the operator captured in the aforementioned billboard.

****3. Conclusions.****

In light of the evaluations mentioned above, taking into account the statements made by the data controller during the investigation - and considering that, unless the act constitutes a more serious offense, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under art. 168 of the Code "Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or exercise of the powers of the Guarantor" - the elements provided by the data controller in the defensive memoranda do not allow for overcoming the observations notified by the Office with the act of initiation of the procedure, nor do any of the cases provided for in art. 11 of the Guarantor Regulation no. 1/2019 apply.

For these reasons, the illegality of the processing of personal data carried out by AUSL Toscana Sud Est is noted, as detailed in the reasoning, in violation of arts. 5, para. 1, lett. a), c) and f), 9 and 25, paras. 1 and 2, of the Regulation, and art. 2 septies, para. 8 of the Code.

In this context, while AUSL Toscana Sud Est has declared that it has removed the aforementioned advertising billboard, the conditions for the adoption of corrective measures under art. 58, para. 2, of the Regulation do not exist.

****4. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (arts. 58, para. 2, lett. i), and 83 of the Regulation; art. 166, para. 7, of the Code).****

The violation of arts. 5, para. 1, lett. a), c) and f), 9 and 25, paras. 1 and 2, of the Regulation, and art. 2 septies, para. 8 of the Code, caused by the conduct carried out by AUSL Toscana Sud Est, is subject to the application of the administrative pecuniary sanction pursuant to art. 83, paras. 4 and 5, of the Regulation and art. 166, para. 2 of the Code.

It should be noted that the Guarantor, pursuant to arts. 58, para. 2, lett. i), and 83 of the Regulation, as well as art. 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to article 83, in addition to [other] corrective measures [provided for in this paragraph], or in lieu of such measures, depending on the circumstances of each individual case" and, in this context, "the Board [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Guarantor's website pursuant to article 166, para. 7, of the Code" (art. 16, para. 1, of the Guarantor Regulation no. 1/2019).

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in the amount held.

****Account of the principles of effectiveness, proportionality, and deterrence, as indicated in Article 83, paragraph 1, of the Regulation, in light of the elements provided in Article 85, paragraph 2, of the Regulation, with respect to which it is observed that.****

1. The Authority became aware of the event following the notification of the violation submitted by the AUSL on XX pursuant to Article 33 of the Regulation and the complaint submitted by the interested party on XX (Article 83, paragraph 2, letter h), of the Regulation);
2. The dissemination concerns personal data related to the provision of an emergency service of an interested party present on a single billboard placed in a location accessible to the public (Article 83,

paragraph 2, letters a) and g), of the Regulation);

3. The aforementioned billboard was displayed for a few weeks in a location that, although open to the public (main entrance corridor for patients in the Emergency Room), due to the concurrent pandemic period, was intended for the transit of only Covid-19 negative patients and was closed to their companions (Article 83, paragraph 2, letters a) and g), of the Regulation);

4. The facts under examination occurred during the ongoing state of health emergency due to Covid-19 (Article 83, paragraph 2, letters a) and g), of the Regulation);

5. The AUSL promptly cooperated to remedy the violation by removing the aforementioned billboard and warning the companies involved in its creation to delete the personal data of the complainant, promptly informing the complainant (Article 83, paragraph 2, letter f) of the Regulation);

6. The AUSL has implemented mandatory training courses for staff for the year 2022 and planned a new training cycle for the year 2023, and in December 2022 conducted the Training Course "Data Processing - with particular reference to images - in the Health Authority," which was attended by numerous operators of various profiles (technical, administrative, health), with a new edition planned for 2023 (Article 83, paragraph 2, letter c), of the Regulation);

7. Following the facts subject to investigation, the AUSL has prepared a company procedure that regulates the establishment of a centralized oversight at the company level regarding the creation of materials using images on any medium (billboards, brochures, videos, photos, posts, etc.) aimed at publication/dissemination within the institutional initiatives of the Company for information, communication, education/promotion of health (Article 83, paragraph 2, letter c), of the Regulation);

8. Although the AUSL has been sanctioned for previous violations of the regulations on the processing of personal data, these do not concern the dissemination of health data (Article 83, paragraph 2, letter e) of the Regulation).

****In light of the aforementioned elements, evaluated as a whole, it is deemed appropriate to determine the amount of the administrative fine provided for in Article 83, paragraph 5, letter a), of the Regulation, in the amount of €20,000 (twenty thousand) for the violation of Articles 5, paragraph 1, letters a), c), and f), 9 and 25, paragraphs 1 and 2, of the Regulation, and Article 2 septies, paragraph 8 of the Code, as an administrative pecuniary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and deterrent.****

****It is also considered that the accessory sanction of publication on the website of the Authority of this provision should be applied, as provided for in Article 166, paragraph 7, of the Code and Article 16 of the Authority's Regulation No. 1/2019, also in consideration of the type of personal data subject to unlawful processing.****

****Finally, it is noted that the conditions set forth in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Authority, are met.****

****ALL OF THE ABOVE, THE AUTHORITY declares the unlawfulness of the processing of personal data carried out by the Local Health Authority of Tuscany South East for the violation of Articles 5, paragraph 1, letters a), c), and f), 9 and 25, paragraphs 1 and 2, of the Regulation, and Article 2 septies, paragraph 8 of the Code as stated in the reasoning.****

****ORDERS****

pursuant to Articles 58, paragraph 2, letter i), and 83 of the Regulation, as well as Article 166 of the Code, the Local Health Authority of Tuscany South East, VAT and Tax Code 02236310518, represented by its legal representative pro tempore, to pay the sum of €20,000 (twenty thousand) as an administrative pecuniary sanction for the violations indicated in this provision; it is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction.

****COMMANDS****

the aforementioned Authority, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €20,000 (twenty thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981.

****DISPOSES****

pursuant to Article 166, paragraph 7, of the Code, the full publication of this provision on the website of the Authority and the annotation of this provision in the internal register of the Authority, as provided for in Article 57, paragraph 1, letter u), of the Regulation, of the violations and the measures adopted in accordance with Article 58, paragraph 2, of the Regulation.

****Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.****

****Rome, June 1, 2023****

****THE PRESIDENT****

Stanzione

****THE RAPPORTEUR****

Ghiglia

****THE SECRETARY GENERAL****

Mattei